

COMPLAINT NO. 2022-00255

IN THE MATTER OF

ERIC ENOCH ESCAMILLA

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**BEFORE THE TEXAS BEHAVIORAL
HEALTH EXECUTIVE COUNCIL**

**THE TEXAS STATE BOARD
OF EXAMINERS OF
PROFESSIONAL COUNSELORS**

AGREED ORDER FOR ELIGIBILITY

Pursuant to its authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(d), the Texas State Board of Examiners of Professional Counselors ("Board") hereby approves, ratifies, and enters this Agreed Order for Eligibility with the following Findings of Fact, Conclusions of Law, and Order of the Texas Behavioral Health Executive Council ("Council"), which have been approved and accepted by **Eric Enoch Escamilla** ("Respondent").

FINDINGS OF FACT

1. Respondent is currently an applicant for licensure as a Licensed Professional Counselor-Associate and is, therefore, subject to the jurisdiction of the Council under the Act.
2. Respondent is currently required by court order to be evaluated on an annual basis to determine if Respondent shall continue to receive outpatient or community-based treatment and supervision pursuant to Tex. Code Crim. Pro. Art. 46C.257.

CONCLUSIONS OF LAW

1. Respondent voluntarily submitted an application to the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.
2. Respondent's acts may constitute a violation of Council Rule §681.41(dd), and §§503.208, 503.302, and 503.401 of the Occupations Code.
3. Based on the above-stated Findings of Fact, Respondent's application is subject to abatement for up to 180 days, pursuant to Council Rule §882.10, before the Council must render a decision upon the application.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Respondent, when conducting the practice of professional counseling as a Licensed Professional Counselor-Associate, shall be required to only do so under supervision of a Licensed Professional Counselor-Supervisor and in accordance with all applicable rules pertaining to supervision.
2. Should Respondent become eligible for an upgrade in licensure to a Licensed Professional Counselor, Respondent must continue to receive direct supervision from a Licensed Professional Counselor-Supervisor consisting of a minimum of four (4) hours per month of supervision in individual (up to two Associates or group (three or more) settings while engaged in counseling unless an extended leave of one month or more is approved by the supervisor. No more than 50% of the total hours of supervision may be received in group supervision.
3. Respondent's supervisor shall, at a minimum, submit an initial written report, within the first month of supervision, and an annual written report to the Council or its designee verifying that supervision has taken place, providing an evaluation of Respondent's performance, and ensuring Respondent is providing professional counseling services in a safe and competent manner. It shall be Respondent's responsibility to ensure the supervisor submits written reports to the Council or its designee. At the Council's discretion, if any of these reports provides sufficient concern, the Council may impose further supervision requirements and/or take other appropriate actions to ensure the safety of the public.

In the event Respondent's supervisor indicates that Respondent is fit to practice professional counseling but makes recommendations concerning reasonable steps Respondent must or should take to enhance or maintain Respondent's fitness to practice professional counseling, Respondent shall comply with any and all recommendations made by Respondent's supervisor. If Respondent refuses or fails to follow the recommendations, Respondent agrees that Respondent's license shall be SUSPENDED, without further hearings, informal settlement procedures, or any right of appeal for judicial review; pending further review of Respondent by the Council, or its designee.

If the supervisor concludes there is sufficient concern or need to impose further requirements, restrictions, and/or take other appropriate actions to ensure the safety of the public the Council, or its designee, may do so at its own discretion. In the event Respondent refuses or fails to follow the additional requirements or restrictions imposed by the Council, or its designee, Respondent agrees that Respondent's license shall be SUSPENDED, without further hearings, informal settlement procedures, or any right of appeal for judicial review; pending further review of Respondent by the Council, or its designee.

WARNING

RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE

§884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

WAIVERS

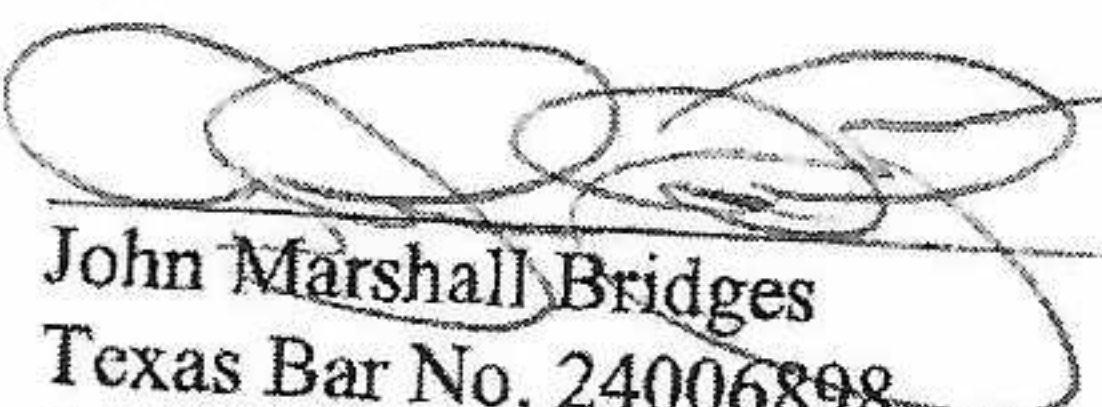
On the underlying licensing/professional/investigative file, Respondent has freely and voluntarily waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:

FOR THE STAFF OF THE COUNCIL:


Eric Enoch Escamilla


John Marshall Bridges
Texas Bar No. 24006898
Staff Attorney
Texas Behavioral Health Executive Council
333 Guadalupe, Ste. 3-900
Austin, Texas 78701

DATE SIGNED: 3/8/2022

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APPROVED, RATIFIED, AND ENTERED THIS 6th DAY OF May, 2022.


Steven Hallbauer
Board Chair
Texas State Board of Examiners of Professional Counselors